



**OIL AND GAS DIVISION ORDER
OWNER COPY**

1/31/2025

Owner Name: TUNDRA AD3 LP

Property No.: 82560000

Description: DELAWARE RANCH 11/14 FED COM 875H (W2BO)

Production: All Products

Effective Date: 05/01/2024

OWNER NAME/ADDRESS

TUNDRA AD3 LP
2100 ROSS AVE
SUITE 1870, LB-9
DALLAS, TX 75201

OWNER NO: 037121
INTEREST TYPE: See Division Order Exhibit "A"
DECIMAL INTEREST See Division Order Exhibit "A"

1. Each of the undersigned warrants ownership of the interest, set opposite his or her name, in all oil (defined as crude oil and condensate) and/or in the proceeds derived from the sale of all gas (defined as natural gas and casinghead gas) produced from:

Property Description:

THE EAST HALF (E½) OF SECTIONS 11 & 14, TOWNSHIP 26 SOUTH, RANGE 28 EAST, N.M.P.M., EDDY COUNTY, NEW MEXICO, CONTAINING 640 ACRES, MORE OR LESS, AS TO AS TO NATURAL GAS AND ASSOCIATED LIQUID HYDROCARBONS PRODUCIBLE FROM THE COMMUNITIZED WOLFCAMP FORMATION FROM THE WELLBORE ONLY OF THE DELAWARE RANCH 11/14 FED COM #875H WELL,

Operator: MEWBOURNE OIL COMPANY

including all substances produced with such oil and gas. Each lessor under an oil and gas lease warrants and agrees to defend the title to the leased premises and that he or she has good title and right and full power to grant and lease the leased premises and that, upon Mewbourne Oil Company (MOC) observing and performing the covenants and conditions on the Lessee's part required by such oil and gas lease, MOC shall and may peaceably possess and enjoy the leased premises and the rights and privileges granted by said oil and gas lease without any interruption or disturbance from or by said lessor or any other person whomsoever.

2. From the effective date and until further written notice, and subject to the following provisions, MOC, or their designated agent, is authorized to receive proceeds from such production and give credit for all production received, and for the proceeds derived from the sale of gas, in accordance with the division of interest shown above. Settlement shall be calculated in accordance with the oil and gas lease or pooling order, as applicable, and shall be made monthly by check mailed, by the 25th day of the month following the month in which MOC receives the proceeds, to the undersigned parties at the addresses given. MOC shall deduct and remit severance taxes to the appropriate authority as required. Should the proceeds accruing to any interest hereunder for any month be less than One Hundred Dollars (\$100.00), MOC may, at their option, retain such proceeds without interest until the first regular settlement date when the proceeds accumulated total as much as One Hundred Dollars (\$100.00); provided that, payment of the accumulated amounts less than One Hundred Dollars (\$100.00) but greater than Ten Dollars (\$10.00) shall be made annually in December of each year, and regardless of the total, payment of the accumulated amounts shall be made when production ceases.

3. MOC is hereby relieved of any responsibility for determining when any interest hereunder shall change by increase, decrease, termination, reversion or otherwise. MOC is authorized to remit proceeds and shut-in gas royalty payments pursuant to the division of interest credited hereunder until written notice to the contrary is received by MOC at Tyler, Texas, and MOC shall be held harmless against loss or liability due to MOC's failure to receive such notice. Each of the undersigned agrees to notify MOC in writing of any change in his or her interest, and no transfer of interest shall be binding on MOC until MOC is furnished the original recorded instrument (or a certified copy thereof) or a transcript of proceedings which satisfactorily evidences such transfer, and MOC's regular form of Transfer Order is fully executed and returned to MOC. Regardless of the effective date of the transfer, all transfers of interest shall be effective hereunder as of 7:00 A.M. on the first day of a calendar month, but not earlier than the first date of the calendar month following the month in which such notice is received.

4. If any claim is made which in MOC's opinion adversely affects title to any interest credited hereunder, or such title is not satisfactory to MOC, the parties credited with such interest severally agree to furnish abstracts or other evidence of title acceptable to MOC. In the event of failure to furnish such evidence of title, MOC is authorized to withhold payment accruing to such interest, without interest, until the claim is settled. Each of the undersigned does hereby expressly ratify and confirm the oil, gas and mineral lease or leases previously executed by the undersigned, pursuant to which oil and gas from the above-described property is being produced and sold, any amendments to such lease or leases including any designations, declarations or agreements creating any unit that includes the above-described property.

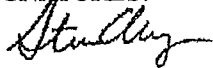
5. Each of the undersigned agrees to indemnify and hold MOC harmless or any other purchaser of said oil or gas and any carrier designated by MOC or any other purchaser to receive the aforesaid oil or gas, and each of them, against all and every loss, damage, charge or expense of any kind whatsoever, which they or either of them may suffer or incur by or on account of receiving or purchasing or transporting said oil or gas, or making payment to the undersigned for said oil or gas, or by reason of any and all claims of any character as to said oil or gas, adverse to the undersigned, regardless of how the same may arise and including (not to the exclusion of any causes not herein expressly set out) the following: all reasonable costs, expenses and attorneys fees incurred in defending in any suit or action, MOC's position or that of MOC's nominee receiving the oil or gas; any judgment rendered in an action or suit affecting the title to either the real property above described or the production therefrom; any claim or claims, or judgments arising therefrom, for any tax which may be asserted by any taxing authority against MOC or MOC's nominee in connection with, incident or in any manner related to, any sum or sums of money held in suspense by MOC or any third party during the existence of any claim or controversy.

6. In addition to the legal rights provided by the terms and provisions of this division order, an owner may have certain statutory rights under state law.

WITNESS SIGNATURES:

1. 
2. 

OWNER SIGNATURES:

By: 

Tundra AD3, LP

BY: Steve Abney, as CEO & President
of Tundra AD3 GP, LLC, Its General Partner

TAX ID # 81-5452366

2100 Ross Ave, Suite 1870, LB-9

Dallas, TX 75201

Contact: shane@dale-energy.com

Revenue to: revenue@dale-energy.com

Phone: (214) 888-8588

Phone #: _____

IMPORTANT: To avoid delay in payment or penalties according to law, please show your correct address and social security number or tax identification number.

**** IMPORTANT TAX INFORMATION ****

Please make sure the TIN you furnish when returning the Division/Transfer Order is the correct number for the entity to which the interest is credited. For Individuals, the TIN is your Social Security Number (SSN). For most non-individuals (such as businesses, trusts, estates and similar entities) the TIN is the Employer Identification Number (EIN).

Section 3406 of the Internal Revenue Code requires that we withhold 31% of revenue due you in tax, called backup withholding, if you do not provide us with your correct Taxpayer Identification Number (TIN). You may also be subject to a \$50 penalty by the IRS under section 6721 of the Internal Revenue Code for failing to provide us with your correct number.



DIVISION ORDER EXHIBIT "A"
OWNER COPY

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Production: All Products

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2100 ROSS AVE
SUITE 1870, LB-9
DALLAS, TX 75201

OWNER NO: 037121
INTEREST TYPE: RI - Royalty Interest
DECIMAL INTEREST 0.00345313